

# Smt. Kalpana Singh v. State of U.P. and 4 Others

High Court of Judicature at Allahabad · Division Bench · 6.11.2023 · 2023:AHC:212571-DB · WRIT - C No. - 33812 of 2023 · **Disposed; fresh 6.5 application to be decided within 15 days; coercion stayed**

## HEADNOTE

Writ complaining that the correct electricity bill was not being supplied was disposed of on the Electricity Department's statement. A fresh application under Clause 6.5 of the U.P. Electricity Supply Code, 2005, filed within 15 days, is to be considered and disposed of within the next 15 days. No coercive action for one month or until that decision, whichever is earlier. The bill itself was not examined.

## FACTUAL SUMMARY

Smt. Kalpana Singh approached the Allahabad High Court in Writ-C No. 33812 of 2023 against the State of Uttar Pradesh and four others. Her grievance was that she was not being provided the correct electricity bill. Learned counsel for the Electricity Department stated that if she filed a fresh application under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within fifteen days, orders would be passed on that application afresh within fifteen days.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::6.5

fresh clause 6.5 application on an incorrect bill, with a short stay of coercive action

### HOLDING

Where the grievance is that the correct electricity bill is not being provided, the writ is disposed of by directing that a fresh application under Clause 6.5 of the U.P. Electricity Supply Code, 2005, if filed within 15 days, shall be considered and disposed of within the next 15 days, and that no coercive action shall be taken for one month or until that decision, whichever is earlier. ¶ 1

## PRINCIPLE TAGS

**article-226-alternate-remedy-up-supply-code-6.5** The writ on a complaint of an incorrect electricity bill was disposed of by sending the consumer to a fresh Clause 6.5 application, to be filed within 15 days and decided within the next 15 days, without any finding on the bill. ¶ 1

**para-6.5-objection-before-coercive-recovery** No coercive action is to be taken against the consumer for one month or until the fresh Clause 6.5 application is decided, whichever is earlier. ¶ 1

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER THE ELECTRICITY BILL SUPPLIED TO THE PETITIONER WAS CORRECT

The Court did not examine the bill. A fresh Clause 6.5 application, if filed within 15 days, is to be considered and disposed of within the next 15 days. ¶ 1